

25STCV13769 25STCV13769

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-07-14

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Case Number: 25STCV13769 Hearing Date: July 14, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 14, 2026

Case Name: Putman v. General Motors, LLC

Case

No.: 25STCV13769

Matter: Hearing on Motion - Other for Compliance Pursuant to
C.C.P. 871.26; and Request for Sanctions Deposition

Moving

Party: Defendant General
Motors, LLC

Responding Party: Plaintiff Connor D. Putman

Tentative

Ruling: Defendant General Motors,
LLC's motion is granted.

Plaintiff

Connor D. Putman ("Plaintiff") filed his action against General Motors, LLC
("Defendant") and Does 1 through 10. The First Amended Complaint ("FAC")
alleges 4 causes of action for: (1) violation of Civil Code section 1793.2,

subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); and (4) breach of implied warranty of merchantability. Plaintiff alleges that on May 31, 202, he purchased a 2022 Chevrolet Trailblazer, vehicle identification number KL79MPS28NB114369.

Defendant

moves to compel Plaintiff to comply with Code of Civil Procedure section 871.26 and to appear for an initial deposition. Plaintiff opposes.

Legal Standard

Code of

Civil Procedure section 871.26 “only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20.” (Code Civ. Proc., § 871.26, subd. (a).) “Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents: (1) The Plaintiff[;] and (2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant’s behalf.” (Code Civ. Proc., § 871.26, subd. (c)(1)-(2) [italics added].)¿¿¿

Unless good

cause is shown for failing to comply with Code Civ. Proc. § 871.26, subdivision (c), “a court shall impose sanctions as follows . . . [a] one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff’s attorney . . . paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).” (Code Civ. Proc., § 871.26, subd. (j)(2) [italics added].)¿¿¿¿

Analysis

Defendant

moves to compel Plaintiff to comply with Code of Civil Procedure section 871.26 to appear for his initial deposition. Defendant also requests the Court to impose sanctions against Plaintiff’s counsel for failure to comply pursuant to Code of Civil Procedure section 871.26, subdivision (j)(2).

The

provisions of Code of Civil Procedure section 871.26 are mandatory. Here, General Motors served its responsive pleading on August 7, 2025. The 120-day time frame began on December 5, 2026. (Stark Decl., ¶ 9.) Plaintiff contends that the motion is now moot because the parties scheduled Plaintiff's deposition for July 6, 2026. (Perks Decl., ¶ 6.) While parties have scheduled Plaintiff's deposition, the Court does not find good cause not to impose sanctions.

Absent good cause, sanctions are mandatory. Plaintiff's declaration confirms that he began to engage in scheduling his overdue deposition only after the present motion was filed. (See Perks Decl., ¶ 3.) Plaintiff had ample time to coordinate with Defendant to schedule his deposition, and he did not provide an explanation as to why he did not do so sooner.

Thus, the Court imposes sanctions against Plaintiff's counsel in the amount of \$1,500 to be paid within 15 court days pursuant to Code of Civil Procedure section 871.26, subdivision (j)(2).

Conclusion

Defendant's motion to compel Plaintiff to appear for his initial deposition is granted. Plaintiff is ordered to be deposed no later than July 31, 2026, if Plaintiff was not deposed on July 6, 2026.

Defendant's request for monetary sanctions is granted. Plaintiff's counsel shall pay a monetary sanction in the amount of \$1,500 to be paid within 15 court days pursuant to Code of Civil Procedure section 871.26, subdivision (j)(2).